

course define broad categories of "aggrieved" persons who have standing to litigate cases or controversies. But, contrary to what my Brother HARLAN suggests, the failure of Congress to act has not barred this Court from allowing standing to sue and from providing remedies. The multitude of cases under the Fourth, as well as the Fourteenth Amendment, are witness enough.⁵

The constitutional guide is "cases" or "controversies" within the meaning of § 2 of Art. III of the Constitution. As respects our appellate jurisdiction, Congress may largely fashion it as Congress desires by reason of the express provisions of § 2, Art. III. See *Ex parte McCordle*, 7 Wall. 506. But where there is judicial power to act, there is judicial power to deal with all the facets of the old issue of standing.

Taxpayers can be vigilant private attorneys general. Their stake in the outcome of litigation may be *de minimis* by financial standards, yet very great when measured by a particular constitutional mandate. My Brother HARLAN's opinion reflects the British, not the American, tradition of constitutionalism. We have a written Constitution; and it is full of "thou shalt nots" directed at Congress and the President as well as at the courts.

generally 3 K. Davis, *Administrative Law Treatise* § 22.09 (1958), §§ 22.09–22.10 (1965 Supp.); Jaffe, *Standing to Secure Judicial Review: Public Actions*, 74 Harv. L. Rev. 1265, 1276–1281 (1961); Comment, *Taxpayers' Suits: A Survey and Summary*, 69 Yale L. J. 895 (1960); *St. Clair v. Yonkers Raceway*, 13 N. Y. 2d 72, 77–81, 242 N. Y. S. 2d 43, 45–49, 192 N. E. 2d 15, 16–19 (1963) (dissenting opinion of Fuld, J.).

⁵ See, e. g., *NAACP v. Alabama*, 357 U. S. 449; *Pierce v. Society of Sisters*, 268 U. S. 510. As the Court said in *Barrows v. Jackson*, 346 U. S. 249, 255, apart from Article III jurisdictional questions, standing involves a "rule of self-restraint for its own governance" which "this Court has developed" itself. And attempts by Congress to confer standing when it is constitutionally lacking are unavailing. *Muskrat v. United States*, 219 U. S. 346.